

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maxwell Jaffe	Team: Team # 4	CCRB Case #: 201410218	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 08/01/2014 8:33 AM	Location of Incident: North-east corner of Lexington Avenue and East 42 Street	18 Mo. SOL 2/1/2016	Precinct: 14
Date/Time CV Reported Fri, 10/03/2014 3:44 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 10/03/2014 3:46 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Claude Montout	21954	946698	TB DT04

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Miguel Brand	17277	943017	TB DT04

Officer(s)	Allegation	Investigator Recommendation
A . POM Claude Montout	Abuse: PO Claude Montout refused to provide his name and shield number to § 87(2)(b)	A . Unsubstantiated

Case Summary

On August 1, 2014, at approximately 8:00 a.m., § 87(2)(b) was waiting on the northbound 14th Street 4,5,6 subway platform when two plainclothes officers, PO Claude Montout and PO Miguel Brand, allegedly observed § 87(2)(b) stroking his erect penis through his front left pants pocket for approximately twenty to thirty seconds (encl. 9B, encl. 11B). § 87(2)(b) then got on the arriving 4, 5, 6 train, and was followed by PO Montout and PO Brand. § 87(2)(b) exited the train at the Lexington Avenue and 42nd Street subway stop. After exiting the train, § 87(2)(b) was stopped by PO Montout and PO Brand and was arrested for public lewdness. During his interaction with the officers, § 87(2)(b) alleged that he asked PO Montout to provide his name and shield number and PO Montout did not comply with either request (**Allegation A**) (encl. 3A, encl. 4B).

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

On October 29, 2014, mediation was presented to § 87(2)(b). He did not provide an answer when initially presented with the mediation process. On November 18, 2014, § 87(2)(b) stated that he was not interested in mediation and wished to pursue an investigation. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- PO Montout has been a member of the NYPD for six years and has had six previous CCRB complaint's filed against him, stemming from three separate incidents. None of the allegations against PO Montout have been substantiated. Three of the complaints were resolved through mediation. § 87(2)(g)
- This is § 87(2)(b)'s first CCRB complaint (encl. 2A).

Potential Issues

MTA video footage was not available for the date and time of the incident (encl. 20A).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Recommendations

Allegation A – PO Claude Montout refused to provide his name and shield number to

§ 87(2)(b)

§ 87(2)(b) stated that after being stopped by PO Montout, he asked PO Montout for his name and badge number, which PO Montout did not provide to him (encl. 3A, encl. 4B). PO Montout

stated that he did not recall if § 87(2)(b) asked for his name or shield number but when he approached § 87(2)(b) he presented his shield and verbally announced himself as “Officer Montout” (encl. 9B). PO Brand stated that § 87(2)(b) did not ask for PO Montout’s name and shield number. PO Brand did not recall if PO Montout provided his name to § 87(2)(b) at any point, but did state that, as a plainclothes officer, it is protocol to identify yourself and state your name when stopping an individual (encl. 11B). § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Team: 10

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date